

		Yet even assuming an agency relationship was alleged, Plaintiffs have again failed to plead fraud with specificity. Plaintiffs do not allege specific facts as to how Gwin made the representations, when Gwin made the representations, where Gwin made the representations, and by what means Gwin made the representations that constitute the alleged fraud. Therefore, the Court SUSTAINS the demurrer to Trudy's fraud claim against Dennis with leave to amend. Plaintiff Trudy Daverso has 20 days leave to amend. Moving party to give notice.
6	30-2020-01126552 Dovan vs. LA Fitness International, LLC	Plaintiffs Christine and Bao Dovon's motion for leave to file a First Amended Complaint is DENIED WITHOUT PREJUDICE TO RE-FILE. Code of Civil Procedure section 473, subdivision (a) permits a court to allow an amendment to any pleading. "A motion to amend a pleading before trial must: (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located." (Rules of Court, rule 3.1324(a).) A court has broad discretion to determine a motion to amend pleadings. (Code Civ. Proc., § 473, subd. (a)(1).) The decision on a motion for leave to amend is entrusted to the sound discretion of the court. (Branick v. Downey Savings & Loan Assn. (2006) 39 Cal.4th 235, 242.) Plaintiffs seek leave to file a FAC to add substantial factual allegations, a cause of action for gross negligence, and punitive damages claim. Given the procedural posture of the case, the motion for leave to amend is DENIED WITHOUT PREJUDICE TO RE-FILE for the following reasons: One, gross negligence is not a stand-alone cause of action and the proposed FAC is defective

		as a matter of law for adding it. “ “ “Gross negligence” long has been defined in California and other jurisdictions as either a “ “ “want of even scant care” or “an extreme departure from the ordinary standard of conduct.” ’ ’ [Citations.] [Citations.] Gross negligence is a subspecies of negligence; it is not a separate tort.” (Joshi v. Fitness International, LLC (2022) 80 Cal.App.5th 814, 825.) Moreover, when the court denied Defendant’s first motion for summary judgment, and specifically, its motion for summary adjudication on Issue 1 (no triable issue as to 1st cause of action for negligence pursuant to the express waiver and as a complete defense to ordinary negligence) on the ground that there is a triable issue of material fact as to gross negligence with respect to Defendant’s management of the sauna [ROA 193], it determined that the 1st cause of action for negligence embraces a claim for gross negligence. Plaintiffs’ motion admits this much, and they essentially had no response to Defendant’s assertion that gross negligence is not a separate cause of action. Two, denying without prejudice will allow Plaintiffs to clean up the proposed FAC to just add the factual allegations to the already existing negligence cause of action, as well as the punitive damages allegations and prayer, and comply with CRC 3.1324. Defendant to give notice of ruling.
8	30-2022-01183025 SPAIN vs. CHAPARRAL BOATS, INC.	Motion to Compel Deposition (Oral or Written) Plaintiff’s Motion to Compel the Deposition of Defendant Chaparral Boats, Inc.’s (Chaparral) Person Most Qualified is DENIED as moot. Plaintiff filed the motion on 7/27/23. Plaintiff moves to compel the deposition of Chaparral’s person most qualified under Code of Civil Procedure section 2025.230, which states: “If the deponent named is not a natural person, the deposition notice shall describe with reasonable particularity the matters on which examination is requested. In that event, the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent.”